

Delaware County Commissioners Meeting February 5th 2024

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=utiKH4BzIzQ
Publication Date	2024-02-06T02:53:56Z
Target Category	delaware_county

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Delaware County Commissioners Meeting Report

Meeting Date: February 5, 2024

Recording Start Time: [00:06:43](#)

1. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding officer called the Delaware County Commissioners meeting to order on Monday, February 5, 2024, at 9:03 AM.
- **Attendance:**
 - **Present:** Mr. Henry, Mr. Reagan, Mr. King, and Mr. Brooke (County Attorney).
 - **Absent:** None noted.
 - **Presiding Officer:** Not explicitly titled by office name, but led the proceedings.

2. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the recitation of the Pledge of Allegiance [00:06:58](#).

- **Approval of Minutes:** Motion to approve the minutes from January 2024. Passed Unanimously by roll call vote [00:07:36](#).
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3. Substantive Business & Board Action

- [00:07:44](#) **Fiddler Life Cycle Five-Year Extension**
 - **Sponsor / Presenter:** Jan Smoot, Delaware County Recorder.
 - **Deliberation Summary:** Contract renewal for the Recorder's Office software/relationship management system, originally initiated in 2004. Funded from the Recorder's perpetuation fund at a cost of \$4,275.55 (noted as \$4,275.55 / \$4,275.65).
 - **Action & Vote Disposition:** Approved Unanimously by roll call vote [00:08:47](#).
- [00:08:52](#) **2024 JAG Grant Application**
 - **Sponsor / Presenter:** Captain Tony Johnson, Delaware County Sheriff's Office.
 - **Deliberation Summary:** Joint partnership grant with the City of Muncie used annually to pay for increased county patrols, primarily offsetting security costs for the county fair. Requires a separate fund to be created by ordinance.
 - **Action & Vote Disposition:** Approved Unanimously by roll call vote [00:09:55](#). (Ordinance creation deferred to the next meeting).
- [00:10:27](#) **Supplemental Agreement - Plan Commission**
 - **Sponsor / Presenter:** Kylen Swackhammer, Plan Commission.
 - **Deliberation Summary:** Contract renewal for former principal planner Hugh Smith to provide part-time, as-needed office help, training, and assistance (103 hours utilized last year). Paid from the comprehensive plan fund (not County General) and is 80% reimbursable.
 - **Action & Vote Disposition:** Approved Unanimously by roll call vote [00:13:36](#).
- [00:11:41](#) **Malcon Consulting Contract**
 - **Sponsor / Presenter:** Carrie, Delaware County Highway Department (with Daniel Vaughn from Malcon).
 - **Deliberation Summary:** Contract regarding the refund of fuel taxes paid by the county, marking the department's first year submitting under this program. Outreach is also underway to bring EMS on board.
 - **Action & Vote Disposition:** Approved Unanimously by roll call vote [00:12:43](#).
- [00:12:49](#) **Scoping Period Amendment Two (Mental Health Facility)**
 - **Sponsor / Presenter:** John Brooke, County Attorney.
 - **Deliberation Summary:** Agreement with Justice Partners to expand the design scoping for the standalone mental health facility. Expansion includes future capacity for Randolph and Henry counties (and potential interest from Jay County), alongside interior design adjustments required for state licensing.
 - **Action & Vote Disposition:** Approved Unanimously by roll call vote [00:14:20](#).

- **00:14:27 Scoping Period Amendment Three (Sanitary/Septic Design)**
 - **Sponsor / Presenter:** John Brooke, County Attorney.
 - **Deliberation Summary:** Addresses wastewater capacity issues. The Muncie Sanitary District indicated it cannot take sanitary service for the new rehabilitation facility or Isaiah House due to capacity constraints from the Justice Center. This amendment covers engineering work to evaluate tying into existing lines versus designing an on-site septic system.
 - **Action & Vote Disposition:** Passed 2-1 (Mr. Henry: Yes, Mr. Reagan: No, Mr. King: Yes) [00:16:02](#).
 - **00:16:11 Contractor Agreement for County Road 350 North Paving**
 - **Sponsor / Presenter:** Andy, Highway Department.
 - **Deliberation Summary:** Review of three bids received at the previous meeting for paving CR 350 North. Recommended awarding to the apparent low bidder, Brooks Construction, for a total of \$7,17... (amount clipped in audio).
 - **Action & Vote Disposition:** Approved Unanimously by roll call vote [00:16:43](#).
 - **00:16:52 Highway Department Material Bids & Fuel Rebid**
 - **Sponsor / Presenter:** Andy / Highway Department.
 - **Deliberation Summary:** Request to approve annual material bids with the **exception** of the fuel bid. The sole fuel bidder was non-local and unable/unwilling to deliver on an emergency winter/summer basis. The fuel portion will be rejected and re-advertised (Ads: Jan 31 & Feb 7; Due: Feb 16 at noon; Opening: Feb 20).
 - **Action & Vote Disposition:** Approved Unanimously by roll call vote [00:18:41](#).
 - **00:19:11 Comprehensive Financial Plan Contract (Baker Tilly)**
 - **Sponsor / Presenter:** Commissioner / Auditor's Office.
 - **Deliberation Summary:** Engagement with Baker Tilly to conduct a broad financial review across County General, EDIT, Cumulative Bridge, Health, Local Roads and Street, MVH, and Statewide Reassessment funds. Aimed at improving budget planning for 2025 and avoiding past funding shortfalls (such as the diversion of \$1.2M in interest last year). Estimated completion in 60 to 90 days.
 - **Action & Vote Disposition:** Approved Unanimously by roll call vote [00:22:33](#).
 - **00:23:41 Resolution 2024-01: Real Estate / Alley Closing (1700 East McGalliard)**
 - **Sponsor / Presenter:** Commissioners / John Brooke.
 - **Deliberation Summary:** Resolution concerning real estate disposition/alley closing. Tabled to allow time for right-of-way information and input from the Plan Commission and Angie Moyer.
 - **Action & Vote Disposition:** Tabled by Voice Vote [00:23:25](#).
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4. Department Reports & Administrative Updates

- **Jan Smoot (County Recorder) 00:23:41:** Highlighted a proactive state property fraud awareness campaign and reminded the public of the county's free property fraud alert software provided via Fiddler, which notifies residents of recorded documents via text, phone, or email.
- **Jeff Hanser (Chief Probation Officer) 00:25:36:** Presented the "Community Connect App," a mobile/QR-code-based platform designed to link citizens, probationers, and re-entry populations directly with local service providers (housing, food, substance abuse treatment) rather than placing the burden entirely on individuals. Upfront buildout cost is \$12,800. Commissioners expressed interest in exploring EDIT funding integration at the next meeting.
- **911 Communications [00:22:20 / 00:32:20]:** Requested approval to sign a contract addendum with RSH Strategic Services to update the 911 Center staffing study, funded out of 911 contractual services. Approved Unanimously by roll call vote [00:32:44](#).
- **Weights and Measures:** Reports distributed to the board [00:33:07](#).

5. Payment of Claims

- **00:33:18 Claims Docket:** Review and approval of claims totaling \$2,776,398.39.
 - **Action & Vote Disposition:** Approved Unanimously by roll call vote [00:33:32](#).
 - *Note:* Commissioners requested that staff ensure departmental expense breakdown reports are consistently distributed post-payroll so departments can verify accurate check processing.

6. Open Public Comment / Citizen Forum

- **00:35:05 Mr. Cummings (Resident, Yorktown area):** Addressed concerns regarding Ordinance 2024-01 (alley closing between properties on Yorktown Road). Stated that the closure landlocks a veteran neighbor who was not properly notified due to not taking the physical newspaper or internet, and highlighted muddy conditions and utility work damage restricting local access. Commissioners and County Engineer Angie Moyer agreed to visit the site immediately following the meeting to evaluate potential access solutions.
- **00:31:23 Mr. William Padgett (1716 East Yorktown Road):** Spoke regarding property access limitations following the alley closure, noting narrow side clearances (52 inches on one side, blocked central air on the other) which prevent moving vehicles, boats, or campers into his backyard.
- **00:43:18 Daniel J. (Real Black Excellence):** Provided a community outreach update regarding youth mentorship programs, partnership/security clearances with the YMCA, fine arts mentorship, upcoming youth concert ticket allocations (February 16 at

Cornerstone Center for the Arts featuring Kirk Whalum), and ongoing economic development/manufacturing negotiations projected to bring 200<U+2013>300 jobs over three years.

7. Administrative Updates & Adjournment

- **00:47:57 Adjournment:** Motion to recess/adjourn. Approved Unanimously by roll call vote 00:48:04.
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